

25NWLC75515 25NWLC75515

County: los-angeles

Division: Civil Law and Motion

Department: Y

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Case Number: 25NWLC75515 Hearing Date: September 15, 2026 Dept: Y

25NWLC75515: BANK OF AMERICA, N.A. vs PAUL ENRIQUE SOSA-AGUIRRE

Tentative Ruling:

The Court has read and considered the moving papers filed by Plaintiff Bank of America, N.A. ("Plaintiff"), the supporting declaration, and all relevant court records.

In its motion, Plaintiff requests to vacate the Default Judgment entered by the Court on April 27, 2026 and dismiss the action without prejudice. Plaintiff has presented evidence that Defendant Paul Enrique Sosa-Aguirre ("Defendant") filed for bankruptcy on April 20, 2026 and thus, due to the automatic stay generated by the filing of the bankruptcy, the Court lacked jurisdiction over the case when the default judgment was entered.

Pursuant to Code of Civil Procedure § 473(d), the Court may set aside any void judgment or order. Code of Civil Procedure § 128 also grants jurisdiction to the Court to take appropriate action in the interests of justice.

Based on the declaration submitted by Plaintiff, the Court GRANTS Plaintiff's request to vacate the Default Judgment. Accordingly, the Default Judgment entered against Defendant on April 27, 2026 is vacated.

The Court further orders that the Complaint filed by Plaintiff and against Defendant is DISMISSED without prejudice.

Plaintiff to give notice.